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In The

Supreme Court of the United States

October Term, 1998

JONATHAN W. MARSHALL, ET AL.,

Petitioners,

v.

RONALD SUSTER, ET AL.,

Respondents.

On Petition For Writ Of Certiorari
To The United States Court Of Appeals
For The Sixth Circuit

BRIEF IN SUPPORT OF PETITION FOR CERTIORARI OF ARIZONA, CONNECTICUT, FLORIDA, HAWAII, IDAHO, IOWA, KANSAS, KENTUCKY, MARYLAND, MASSACHUSETTS, MICHIGAN, MISSOURI, MONTANA, NEVADA, NEW HAMPSHIRE, NORTH CAROLINA, NORTH DAKOTA, OKLAHOMA, UTAH, VERMONT, WASHINGTON, WEST VIRGINIA AS AMICI CURIAE IN SUPPORT OF PETITIONERS

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QUESTIONS PRESENTED

1. Whether the Sixth Circuit erred by reviewing the law as it existed at the time the lawsuit was filed, rather than the amended version effective at the time of the appellate court's review.

2. Whether, consistent with this Court's ruling in *Buckley v. Valeo*, 424 U.S. 1 (1976), reasonable, population-based limitations on campaign spending in judicial elections are narrowly tailored to serve the compelling state interests of the preservation of impartiality and the appearance of impartiality of the judiciary, or, in the alternative, whether the standard articulated in *Buckley* is inappropriately applied to judicial campaigns.

TABLE OF CONTENTS

Page

INTERESTS OF THE AMICI 1

REASONS FOR GRANTING THE WRIT 3

I. STATES HAVE A COMPELLING INTEREST IN MAINTAINING AN UNBIASED AND INDEPENDENT JUDICIARY..... 4

II. *BUCKLEY V. VALEO*, 424 U.S. 1 (1976) DOES NOT PRECLUDE JUDICIAL RECOGNITION OF COMPELLING GOVERNMENTAL INTERESTS SUFFICIENT TO JUSTIFY SPENDING LIMITATIONS 12

III. THERE IS SUFFICIENT DOUBT REGARDING THE SOUNDNESS OF *BUCKLEY* TO MERIT RECONSIDERATION OF THAT DECISION.... 14

IV. FEDERAL COURT REVIEW OF A REVISED STATE RULE, RATHER THAN THE CURRENT RULE, IMPROPERLY DISCOURAGES STATES FROM CORRECTING RULES WHICH BURDEN THE EXERCISE OF FEDERAL CONSTITUTIONAL RIGHTS 16

CONCLUSION 18

TABLE OF AUTHORITIES

Page

CASES

Ackerson v. Kentucky Judicial Retirement & Removal Commission, 776 F.Supp. 309 (W.D. Ky. 1991) 5

Afroyim v. Rusk, 387 U.S. 253 (1967) 14

Berger v. Supreme Court of Ohio, 598 F. Supp. 69 (S.D. Ohio 1984), aff'd, 861 F.2d 719 (6th Cir. 1988) 5

Beshear v. Butt, 863 F. Supp. 913 (E.D. Ark. 1994) 6

Buckley v. Illinois Judicial Inquiry Board, 997 F.2d 224 (7th Cir. 1993) 6

Buckley v. Valeo, 424 U.S. 1 (1976) ..... *passim*

Buckley v. Valeo, 519 F.2d 821 (D.C. Cir. 1975) 14

Burnet v. Coronado Oil & Gas Co., 285 U.S. 393 (1931) 13

City of Mesquite v. Aladdin's Castle, Inc., 455 U.S. 283 (1982) 17

Continental T.V., Inc. v. GTE Sylvania, Inc., 433 U.S. 36 (1977) 14

CSC v. Letter Carriers, 413 U.S. 548 (1973) 13

Diffenderfer v. Central Baptist Church, 404 U.S. 412 (1972) 16, 17

Federal Communications Commission v. League of Women Voters of California, 468 U.S. 364 (1984) 13

Florida General Contractors v. Jacksonville, 508 U.S. 656 (1993) 17

TABLE OF AUTHORITIES – Continued

Page

Fusari v. Steinberg, 419 U.S. 379 (1975)..... 17

Gregory v. Ashcroft, 501 U.S. 452 (1991) 4, 7

J.C.J.D. v. R.J.C.R., 803 S.W.2d 953 (Ky. 1991)..... 6

Morial v. Judiciary Commission, 565 F.2d 295 (5th Cir. 1977), cert. denied, 435 U.S. 1013 (1978) 6

National Treasury Employees' Union v. Von Raab, 489 U.S. 656 (1989)..... 17

Patterson v. McLean Credit Union, 491 U.S. 164 (1989)..... 13

Planned Parenthood v. Casey, 505 U.S. 833 (1992) 13

Republican Nat'l Committee v. FEC, 487 F. Supp. 280 (S.D.N.Y.) (three-judge court), *aff'd mem.*, 445 U.S. 955 (1980)..... 11

Rosenstiel v. Rodriguez, 101 F.3d 1544 (8th Cir. 1996), *cert. denied*, ___ U.S. ___, 117 S. Ct. 1820 (1997)..... 11

Roth v. United States, 354 U.S. 476 (1957)..... 3

Russell v. Burris, 146 F.3d 563 (8th Cir. 1998), *cert. denied*, 67 U.S.L.W. 3332 (Nov. 16, 1998)..... 11

Stretton v. Disciplinary Board of Supreme Court of Pennsylvania, 944 F.2d (3rd Cir. 1991).....5, 6

Taylor v. Hayes, 418 U.S. 488 (1974) 5

Tully v. Mobil Oil Corp., 455 U.S. 245 (1982)..... 17

Tumey v. Ohio, 273 U.S. 510 (1927) 5

TABLE OF AUTHORITIES – Continued

Page

Turner Broadcasting System, Inc. v. Federal Communications Commission, 520 U.S. 180 (1997) 15

Vote Choice Inc. v. DiStefano, 4 F.3d 26 (1st Cir. 1993) 11

Ward v. Village of Monroeville, Ohio, 409 U.S. 57 (1972) 5

OTHER AUTHORITIES

American Bar Association, Report and Recommendations of the Task Force on Lawyers' Political Contributions (July 1998) 6, 8, 9

American Judicature Society, Judicial Selection in States (March 1998) 2, 6

C. Edwin Baker, *Campaign Expenditures and Free Speech*, 33 Harv. C.R.-C.L.L.Rev. 1 (1998) 14

Vincent Blasi, *Free Speech and the Widening Gyre of Fund-Raising: Why Campaign Spending Limits May Not Violate the First Amendment After All*, 94 Colum. L. Rev. 1281 (1994) 10, 11

Canon VII(C)(6)(d) 16

Champagne, *Judicial Reform in Texas*, 72 Judicature 146, 149 (1988) 7, 9

Mark Hansen, *A Run for the Bench*, ABA Journal, Oct. 1998 68 8

Roland Homet, *Fact-Finding in First Amendment Litigation: The Case of Campaign Finance Reform*, 21 Okla. City U. L. Rev. 97 (1996) 14

Report of the Walsh Commission (March 1996) 10

TABLE OF AUTHORITIES – Continued

Page

Peter M. Shane, *Commentary, Back to the Future of the American State: Overruling Buckley v. Valeo and Other Madisonian Steps*, 57 U. Pitt. L. Rev. 443 (Winter 1996) 14

Randall Shepard, *Campaign Speech: Restraint and Liberty in Judicial Ethics*, 9 Geo. J. Legal Ethics, 1059 (1996) 5

Scott D. Weiner, *Popular Justice: State Judicial Elections and Procedural Due Process*, 31 Harv. C.R.-C.L. L. Rev. 187 (1996) 5, 7, 9

INTERESTS OF THE AMICI

The State of Iowa and twenty-one other states[1] join this brief in support of the petition for certiorari filed by John W. Marshall, et al., of the Ohio Supreme Court. At issue is whether *Buckley v. Valeo*, 424 U.S. 1 (1976), bars all judicial campaign spending limitations without regard to the unique interests of states in preserving the independence and integrity of the judiciary and protecting the due process rights of litigants. If *Buckley* does mandate rejection of judicial spending limits, *Buckley* should be reconsidered and overruled in light of new facts and circumstances and new compelling governmental interests justifying such limits.

This is a case of great significance. All states, however they select judges, have a compelling interest in preventing partiality in adjudication, assuring judicial integrity, and assuring public belief in the judicial system. Thirty-eight states use some type of elective system to select or retain judges for all or some of their state courts. Of those states, thirteen utilize nonpartisan elections to select all judges: Georgia, Idaho, Kentucky, Michigan, Minnesota, Mississippi, Montana, Nevada, North Dakota, Ohio, Oregon, Washington, and Wisconsin. Eight states hold partisan elections to select their judiciary: Alabama, Arkansas, Illinois, Louisiana, North Carolina, Pennsylvania, Texas and West Virginia. An additional seventeen states elect a portion of their judges or require judges to stand for retention elections: Alaska, Arizona, California,

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[1] The State of New Hampshire, which has no judicial elections, joins in parts II and III.

Colorado, Florida, Indiana, Iowa, Kansas, Maryland, Missouri, Nebraska, New Mexico, Oklahoma, South Dakota, Tennessee, Utah, and Wyoming. American Judicature Society, Judicial Selection in States (March 1998).

The amici states have a compelling interest in preventing corruption and the appearance of corruption in all state political elections. The amici states also have compelling interests in maintaining the integrity, independence and impartiality of judges and limiting the negative impacts of fund-raising on the performance of judges. Public distrust of government because of campaign finance issues adversely affects all government officials. In addition, the excessive costs of judicial campaigns substantially affect all states where elections play a role in selection of judges, harming not only public trust in the judiciary, but also the due process rights of litigants appearing before elected judges. Each state joining this brief has a vital interest in (a) preserving the free speech and due process rights of our citizens; (b) preserving the integrity of the judiciary and avoiding the appearance of partiality in judicial offices; (c) reducing corruption and the appearance of corruption in government generally; and (d) assuring public faith and participation in the democratic process. The State of Ohio has established a compelling interest in shielding its judiciary from the appearance of partiality and potential for improper influence which flow from excessive campaign expenditures. The expenditure limitations at issue in this case are narrowly tailored to serve this interest and should have been upheld.

The Court's application of *Buckley* to strike the judicial campaign spending limitations enacted by the Ohio

Supreme Court effectively bars adoption of judicial campaign spending limits regardless of the offered justification. This Court should grant certiorari in light of the enormous consequences to our system of government stemming from this misapplication of *Buckley*.

The Amici submit that the events of the last twenty years reveal that reasonable ceilings on campaign spending are needed to ensure the robust and "unfettered interchange of ideas" that is at the core of the First Amendment. *Buckley v. Valeo*, 424 U.S. at 14, *quoting Roth v. United States*, 354 U.S. 476, 484 (1957). In the last twenty years the amici states have seen marked increases in the amount of campaign expenditures. The amici states are concerned that limits on individual campaign contributions alone do not prevent corruption or the appearance of corruption.

REASONS FOR GRANTING THE WRIT

The Court below refused to consider the unique nature of judicial elections, refused to give credence to the compelling interests offered by the State of Ohio, and refused to even consider the possibility that an interest other than preventing corruption or the appearance of corruption could justify judicial campaign expenditure limitations. The Court essentially held that *Buckley v. Valeo* forever barred the recognition of compelling governmental interests sufficient to justify judicial campaign spending limits, no matter how narrowly tailored those limitations might be. This cannot be a proper application of the law. Especially in an issue of such importance,

which is dependent upon assessments of facts that may change over time, constitutional rules cannot be frozen. Only this Court can correct this misapplication of *Buckley*.

I. STATES HAVE A COMPELLING INTEREST IN MAINTAINING AN UNBIASED AND INDEPENDENT JUDICIARY.

The people in each state "have a legitimate, indeed compelling, interest in maintaining a judiciary fully capable of performing the demanding tasks that judges must perform." *Gregory v. Ashcroft*, 501 U.S. 452, 464 (1991) (mandatory retirement age for appointed state judges exempt from Federal Age Discrimination in Employment Act). Restrictions on judicial election spending implicate not only the First Amendment interests of candidates but also the interest in an impartial judiciary which underlie the Due Process Clause.

> The First Amendment analysis by its nature tends to highlight the electoral interests of the judge as a candidate and the citizens as voters. It often fails to recognize that these men and women are candidates to a single end, that of becoming judges, and once judges, the interests of the litigants they serve and the judicial system as a whole should be paramount. Once this is appreciated, the restraints on judicial electioneering can be seen for what they are, due process protections for litigants arguing before the elected judges.

Randall Shepard, *Campaign Speech: Restraint and Liberty in Judicial Ethics*, 9 Geo. J. Legal Ethics, 1059, 1060 (1996).[2] Even a judge's indirect financial interest in a pending case can violate the Due Process Clause. This Court has found undue risk of bias, for example, where a police court judge received a small amount of each fine, *Tumey v. Ohio*, 273 U.S. 510, 515 (1927), or where the town treasury received traffic fines imposed by a mayor acting as traffic judge, *Ward v. Village of Monroeville, Ohio*, 409 U.S. 57, 58 (1972). The mere appearance of bias can in some cases create sufficient risk to the right to fair trial to violate due process. *Taylor v. Hayes*, 418 U S. 488, 501 (1974) (requiring trial judge's recusal in attorney contempt case). *See* Scott D. Weiner, *Popular Justice: State Judicial Elections and Procedural Due Process*, 31 Harv. C.R.-C.L. L. Rev. 187, 190-191 (1996).

The need for an impartial judiciary is a sufficiently compelling state interest to permit reasonable regulation of judicial campaign speech necessary to achieve that purpose. Thus, judicial candidates can be restricted from commenting on issues likely to come before them as judges. *Stretton v. Disciplinary Board of Supreme Court of Pennsylvania*, 944 F.2d 137, 142 (3rd Cir. 1991); *Ackerson v. Kentucky Judicial Retirement & Removal Commission*, 776 F.Supp. 309, 315 (W.D. Ky. 1991); *Berger v. Supreme Court of Ohio*, 598 F. Supp. 69, 75 (S.D. Ohio 1984), *aff'd*, 861 F.2d 719 (6th Cir. 1988).[3] "The state's interest in ensuring that

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[2] The author, Randall Shepard, is Chief Justice of the Indiana Supreme Court.

[3] Although there are cases striking judicial campaign speech regulations as overly broad, those cases also recognize

judges be and appear to be neither antagonistic nor beholden to any interest, party, or person is entitled to the greatest respect." *Morial v. Judiciary Commission*, 565 F.2d 295, 302 (5th Cir. 1977), *cert. denied*, 435 U.S. 1013 (1978) (upholding requirement that judge resign before campaigning for non-judicial office). This interest justifies the imposition of campaign speech restrictions upon judicial candidates which would almost certainly be found unconstitutional if applied to non-judicial candidates. *Stretton*, 944 F.2d at 142.

"The fact that a state chooses to select its judges by popular election . . . does not signify the abandonment of the ideal of an impartial judiciary carrying out its duties fairly and thoroughly." *Stretton v. Disciplinary Board of Supreme Court of Pa.*, 944 F.2d at 142. Federal judges are appointed by the President for life. However, thirty-eight states have judges at some level stand for some form of election, ranging from partisan elections to retention-only elections. American Judicature Society, Judicial Selection in the States (March 1998). "Of the nations' 1,243 state appellate judges, 81.9% stand for election of some type and 47.9% face contestable elections. . . . Of the nations' 8,489 state judges in trial courts of general jurisdiction, 86.9% stand for election of some type and 77.3% face contestable elections. . . . " American Bar Association, Report and Recommendations of the Task Force on Lawyers' Political Contributions, p. 3, n.1 (July 1998). It is the

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that preservation of judicial impartiality is a compelling state interest. *Buckley v. Illinois Judicial Inquiry Board*, 997 F.2d 224, 227 (7th Cir. 1993); *Beshear v. Butt*, 863 F. Supp. 913 (E.D. Ark. 1994); *J.C.J.D. v. R.J.C.R.*, 803 S.W.2d 953, 956 (Ky. 1991).

prerogative of sovereign states to decide the qualifications for judges and how best to assure the goal of a fully functioning judiciary. *Gregory v. Ashcroft*, 501 U.S. at 472-473. That states make judges accountable to the electorate, either through contested elections or retention elections, does not reduce the compelling need for an impartial judiciary.[4]

The problems arising from high campaign spending in judicial elections differ from those for legislative or executive offices. Most contributions come from lawyers or potential litigants, so the base of contributors is quite small. Champagne, *Judicial Reform in Texas*, 72 Judicature 146, 149 (1988) (study of Texas judicial elections). In a 1989 Pennsylvania Supreme Court race, the winning candidate spent $1,400,000 – $800,000 contributed by law firms. Weiner, *Popular Justice: State Judicial Elections and Procedural Due Process*, 31 Harv. C.R.-C.L. L. Rev. at 194. Lawyers and litigants are also the persons most likely affected by the judge's official performance in individual cases. A 1998 study of Texas judicial campaign contributions indicated that forty percent of campaign spending by the seven winning candidates for the Texas Supreme Court in 1994 and 1996 was donated by parties and lawyers having cases before the court and contributors closely linked to them. As a result, in over sixty percent of the opinions issued from 1994 to 1997, at least one of

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[4] While some have suggested that elimination of judicial elections to mimic the federal model would solve the judicial campaign dilemma, this would not be a less restrictive alternative to regulation of judicial campaign speech or spending as it would eliminate that speech altogether.

the seven justices had received a contribution from a contributor closely linked to a party or lawyer in the case. Mark Hansen, *A Run for the Bench*, ABA Journal, Oct. 1998 at 68, 70.

Judicial elections are becoming much more expensive nationwide. ABA Taskforce Report, pp. 13-17. This is true of non-partisan and retention-only elections, as well as partisan elections. *Id.*, p. 16. The most expensive judicial campaign ever was a retention-only election involving three California Supreme Court Justices in which spending exceeded ten million dollars. *Id.* Increased spending occurs at all levels and throughout the country. The median spending in non-partisan elections for the Los Angeles Superior Court jumped from $3,000 in 1976 to $70,000 in 1994. *Id.* Spending for a non-partisan election for one seat on the Kentucky Supreme Court in 1978 was $52,000, but rose to an average of $412,000 for two seats in 1996. *Id.* at 17.

The high cost of judicial elections is itself a critical problem. As the American Bar Association Task Force on Lawyers' Political Contributions concluded, "Of course the greater the sums raised, the greater are all the problems: the pressure on lawyers to contribute, the judges' time and attention that will likely be given to fund-raising, the judges' dependence – or appearance of dependence – on the fund-raisers and the contributors, and the erosion of public confidence." ABA Task Force Report, p. 16. The ABA Task Force did not address the merits of campaign spending limitations because of this pending case. *Id.* at p. 23, n.37. The Task Force did, however, conclude that " . . . the need for reform could not be clearer nor more urgent, given the value we place

on public confidence in the courts, on judges' independence and integrity, and on making the bench attractive to the kinds of people we need as judges." ABA Taskforce Report, p. 17.

Caps on individual campaign contributions do not address the problems created by competition for contributions from two or more special interest groups or segments of the bar. This and the increased use of expensive advertising media are cited as the two most significant factors causing a dramatic increase in the dependency on, and influence of, campaign contributions in judicial elections in the last twenty years. Weiner, *Popular Justice: State Judicial Elections and Procedural Due Process*, 31 Harv. C.R.-C.L. L. Rev. at 193. The *Mobile Register* in an editorial dated December 29, 1994, claimed that the "public's estimate of judicial elections was pushed to its lowest point" by a recent state supreme court election. The reason, asserted the paper, was that "Plaintiffs' lawyers on the one side and business interests on the other pour millions of dollars into judicial campaigns to get their respective allies elected to the bench." A *Judicature* article asserted that the Texas Supreme Court, and some lower court, races have seen "campaign finance wars between plaintiff and defense lawyers." Champagne, *Judicial Reform in Texas*, 72 Judicature at 149.

Ohio is not alone in concluding that the high cost of judicial elections is a critical problem. A Pennsylvania Report of the Special Commission to Limit Campaign Expenditures (March 1998) calls for the limitation of judicial campaign expenditures to $1,000,000 for Supreme Court Office, $500,000 for Superior and Commonwealth Court, and $250,000 for the Court of Common Pleas. That

panel, appointed by the Pennsylvania Supreme Court, commissioned polls that showed that ninety percent of Pennsylvania voters believe that "the amount of money spent in elections and campaigns causes many voters to lose a great deal of faith in the political system." *Id.*, p. 13. In Washington State, a commission appointed by the Supreme Court Chief Justice, the Governor, and legislative leaders recently called for shifting from a competitive election to a retention election for judges. A key reason is to reduce the mounting cost of judicial campaigns. The commission recognized that maintaining impartiality is difficult when judges must seek very substantial financial help from lawyers and special interest groups. Report of the Walsh Commission, p. 45 (March 1996).

States and the public reasonably fear that this competitive fundraising spiral can have significant adverse effects on the performance of judges. As shown by the examples above, the extent of contributions from one or more affected interest groups can be very significant. Knowledge of this dependence plus the efforts required to organize a fundraising campaign sufficient to generate upwards of one million dollars for statewide races clearly can adversely affect the performance of the judge.

States have a compelling interest in assuring that the demands of fundraising not drain elected officials of the time and attention necessary to carry out their official duties. Vincent Blasi, *Free Speech and the Widening Gyre of Fund-Raising: Why Campaign Spending Limits May Not Violate the First Amendment After All*, 94 Colum. L. Rev. 1281, 1284-1289 (1994). The increased time spent raising campaign funds is directly related to the high level of campaign spending. Alternative campaign finance reform

methods, such as contribution limits and disclosure requirements, do not prevent this diversion of time and attention. "Candidates facing or fearing tight races will be preoccupied with fund-raising (or voucher raising) under any system that does not restrict total spending." *Id.* at 1284. This harm is clearly not caused by speech, but by the process of collecting campaign dollars. Nor can the impact on candidates' time be mitigated by more speech. *Id.* at 1298-99.

Decisions of the Courts of Appeals for the First and Eighth Circuits, upholding voluntary expenditure limits within a public financing system, have recognized an independent compelling governmental interest in freeing candidates from the rigors of fundraising. *See Rosenstiel v. Rodriguez*, 101 F.3d 1544, 1553 (8th Cir. 1996), *cert. denied*, ___ U.S. ___, 117 S. Ct. 1820 (1997); *Vote Choice Inc. v. DiStefano*, 4 F.3d 26, 39 (1st Cir. 1993). The Court of Appeals for the Eighth Circuit, in upholding the voluntary expenditure limitations in Minnesota's public financing system, found as a matter of "well settled" law the government's compelling interest in seeking "a diminution in the time candidates spend raising campaign contributions, thereby increasing the time available for discussion of the issues and campaigning." *Rosenstiel*, 101 F.3d at 1553, *citing Shrink Mo. Gov't PAC v. Maupin*, 71 F.3d 1422, 1426 (8th Cir. 1995); *Republican Nat'l Committee v. FEC*, 487 F. Supp. 280, 285 (S.D.N.Y) (three-judge court), *aff'd mem.*, 445 U.S. 955 (1980); *but see Russell v. Burris*, 146 F.3d 563, 568 (8th Cir. 1998), *cert. denied*, 67 U.S.L.W. 3332 (Nov. 16, 1998) (indicating that the anti-corruption rationale is only compelling interest thus far recognized by this Court to support campaign spending limits). The

Court of Appeals for the First Circuit, in upholding portions of the Rhode Island public financing system, acknowledged that "the state possesses a valid interest in having candidates accept public financing because such programs . . . free candidates from the pressures of fundraising." *Vote Choice Inc. v. DiStefano*, 4 F.3d at 39.

The Court of Appeals failed to recognize that the State of Ohio has compelling state interests in assuring its citizens the protection of a functioning and impartial judiciary. These interests are different from the interests considered in *Buckley* and are not precluded by that decision.

II. *BUCKLEY V. VALEO*, 424 U.S. 1 (1976) DOES NOT PRECLUDE JUDICIAL RECOGNITION OF COMPELLING GOVERNMENTAL INTERESTS SUFFICIENT TO JUSTIFY SPENDING LIMITATIONS.

Perhaps because this Court in *Buckley* considered only an abstract challenge to campaign spending limitations and the United States did not defend those, the Court found that "no governmental interest that has been suggested is sufficient to justify the restriction on the quantity of political expression imposed by 608(c)'s campaign expenditure limitations." 424 U.S. at 55. As shown above, there are additional compelling and unique state interests protected by judicial campaign spending limits.

The Court's factual assumptions in *Buckley* cannot permanently preclude courts from acknowledging that those assumptions were erroneous or from hearing new factual matters to support campaign spending limitations. "[A] decision of the Court, if, in essence, merely the

determination of a fact, is not entitled in later controversies between other parties, to that sanction which, under the policy of stare decisis, is accorded to the decision of a proposition purely of law. For not only may the decision of the fact have been rendered upon an inadequate presentation of then existing conditions, but the conditions may have changed meanwhile." *Burnet v. Coronado Oil & Gas Co.*, 285 U.S. 393, 412 (1931) (Brandeis, J. dissenting).

Where less restrictive alternatives fail to accomplish the compelling state interest, *stare decisis* does not preclude a state from enacting more burdensome laws necessary to meet the need. *Federal Communications Commission v. League of Women Voters of California*, 468 U.S. 364, 401, n.27 (1984) ("over a century of governmental experience with less restrictive alternatives that proved to be inadequate to maintain the effective operation of government" supported constitutionality of Hatch Act) *describing CSC v. Letter Carriers*, 413 U.S. 548, 557-563 (1973).

Changed factual circumstances provide an appropriate basis for distinguishing a decision of the Supreme Court. *See Patterson v. McLean Credit Union*, 491 U.S. 164, 174 (1989) ("a precedent becomes more vulnerable as it becomes outdated and after being 'tested by experience, has been found to be inconsistent with the sense of justice or with the social welfare' "), *quoting Runyon v. McCrary*, 427 U.S. 160, 191 (1976) (Stevens, concurring). Overruling a prior case is also appropriate where "facts have so changed or come to be seen so differently, as to have robbed the old rule of significant application or justification. . . . " *Planned Parenthood v. Casey*, 505 U.S. 833, 854 (1992).

III. THERE IS SUFFICIENT DOUBT REGARDING THE SOUNDNESS OF *BUCKLEY* TO MERIT RECONSIDERATION OF THAT DECISION.

To the extent that the Court of Appeals for the Sixth Circuit correctly applied *Buckley* to hold all campaign spending limits unconstitutional, reconsideration of *Buckley* is appropriate. Significant doubt about the soundness of the decision in *Buckley* and the strength of criticism of that decision among legal scholars[5] supports reconsideration. *See Afroyim v. Rusk*, 387 U.S. 253, 255-56 (1967); *Continental T.V., Inc. v. GTE Sylvania, Inc.*, 433 U.S. 36, 47-49 (1977).

It is particularly inappropriate to read *Buckley* as conclusively adjudicating issues of legislative fact as there was never a trial in *Buckley*. The *per curiam* decisions of the court of appeals and this Court were based on stipulations and offers of proof concerning 28 certified questions of constitutional law. *Buckley v. Valeo*, 519 F.2d 821, 901-904 (D.C. Cir. 1975). Roland Homet, *Fact-Finding in First Amendment Litigation: The Case of Campaign Finance Reform*, 21 Okla. City U. L. Rev. 97, at 99-107 (1996). The United States did not defend the constitutionality of the spending limits. The Brief for the Attorney General as Appellee and for the United States as Amicus Curiae, pp.

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[5] Among critical analyses of *Buckley* are: C. Edwin Baker, *Campaign Expenditures and Free Speech*, 33 Harv. C.R.-C.L.L.Rev. 1 (1998); Peter M. Shane, *Commentary, Back to the Future of the American State: Overruling Buckley v. Valeo and Other Madisonian Steps*, 57 U. Pitt. L. Rev. 443 (Winter 1996); Roland Homet, *Fact-Finding in First Amendment Litigation: The Case of Campaign Finance Reform*, 21 Okla. City. U. L. Rev. 97 (1996).

67-68, 72-73, indeed suggested that expenditure limitations were unconstitutional.

Even in First Amendment cases, the Court accords deference to legislative findings as to harms to be avoided and the remedial measures to be adopted; otherwise, the legislative authority to make judgments to develop policy would be greatly infringed. *Turner Broadcasting System, Inc. v. Federal Communications Commission*, 520 U.S. 180, 195 (1997) (upholding cable television "must-carry" requirements). Despite the lack of any trial of fact, the decision in *Buckley* gave no deference to legislative judgments as to the need for spending limitations. As Justice White noted in dissent, "The record before us no more supports the conclusion that the communicative efforts of congressional and Presidential candidates will be crippled by the expenditure limitations than it supports the contrary." 424 U.S. at 263.

The results of two decades of application of *Buckley* lend credence to the legislative findings rejected therein and provide a basis for new legislative findings of compelling governmental interests necessitating campaign expenditure limitations. The Court should defer to the Ohio Supreme Court's rulemaking judgment concerning the need for judicial campaign spending limits.

IV. FEDERAL COURT REVIEW OF A REVISED STATE RULE, RATHER THAN THE CURRENT RULE, IMPROPERLY DISCOURAGES STATES FROM CORRECTING RULES WHICH BURDEN THE EXERCISE OF FEDERAL CONSTITUTIONAL RIGHTS.

Canon VII(C)(6)(d), as enacted in 1995, established a $75,000 expenditure limitation for all judicial candidates for a court of common pleas and a $15,000 limitation for campaign expenditure for municipal or county courts. The District Court enjoined enforcement of these limitations, concluding that the challengers would likely succeed in establishing that the canon unconstitutionally infringed on judicial candidate's First Amendment rights. Petition Appendix, A-40. Appeal was taken to the Sixth Circuit Court of Appeals. Prior to the completion of briefing on the appeal, the Ohio Supreme Court amended Canon VII(C)(6)(d), replacing the across-the-board expenditure limitations with a graduated scale of population-based expenditure limitations, thus providing more narrowly tailored spending limitations.

Under these circumstances, where a challenged law is amended after entry of judgment, but prior to resolution of a pending appeal, the appellate court is bound to review the judgment of the district court in light of the amended provision, rather than the law as it stood before the lower court. *Diffenderfer v. Central Baptist Church*, 404 U.S. 412, 414 (1972). The Court of Appeals acknowledged this precedent, indicating that it "could no longer consider the former version of Canon VII(C)(6)" as it [had] recently been revised. App. A-7. The Court then ignored pronouncements of this Court regarding appropriate

alternatives for review of the amended canon[6] and proceeded to order remand to the district court for review of the constitutionality of the new canon while issuing a decision regarding the "appropriateness" of the district court's decision as to the amended canon. App. A-8. The Court's review of the amended canon was directly contrary to this Court's repeated pronouncements requiring an appellate court to judge a case in accordance with the law as it exists at the time of [the appellate] decision. *Tully v. Mobil Oil Corp.*, 455 U.S. 245, 247 (1982); *see also National Treasury Employees' Union v. Von Raab*, 489 U.S. 656, 661 n.1 (1989).

The approach taken by the Court of Appeals strongly discourages states faced with a facial challenge to the constitutionality of a statute from voluntarily correcting potential defects in the statute. If voluntary correction can result in issuance of a negative decision regarding the old statute as well as the preservation of the pending

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[6] Three alternatives are available to an appellate court faced with amendment of a challenged law during the pendency of an appeal. If the amendment so changes the law that the pending controversy is mooted, the lower court decision should be vacated. *Diffenderfer v. Central Baptist Church*, 404 U.S. at 415. If the amendment is such that additional fact-finding is necessary to determine the impact on the pending controversy, a remand to the district court is appropriate. *Fusari v. Steinberg*, 419 U.S. 379, 387-89 (1975). But when the amendment does not moot the controversy or significantly alter the substance of the issues presented on appeal, the appellate court should proceed to review the lower court ruling in light of the amended law. *Florida General Contractors v. Jacksonville*, 508 U.S. 656, 661-63, n.3 (1993); *City of Mesquite v. Aladdin's Castle, Inc.*, 455 U.S. 283, 288-89 (1982).

challenge as to the new statute, little can be gained by the correction. In fact, much may be lost. The intervening amendment may be viewed as a concession that the statute as initially challenged was faulty. More importantly, the appellate decision will stand as precedent limiting the lower court's consideration of the revised statute. The Court of Appeals' review of the amended canon is particularly harmful in this case in that the Court's decision represents the first reported federal appellate court decision addressing the constitutionality of judicial campaign spending limitations. The decision should not be allowed to stand as guidance for other states considering enactment of similar limitations.

CONCLUSION

The *amici* states urge this Court to reevaluate campaign expenditure limits in light of the facts and compelling interests presented in this case which were not raised in *Buckley*. We submit that *Buckley* does not and should not stand as a bar to Ohio's judicial campaign spending limits and request the Court to reverse the decision below.

Respectfully submitted,

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